

Court No. - 39

Case :- WRIT - C No. - 7624 of 2021

Petitioner :- M/S Bismillah Rice Mills

Respondent :- Madhyanchal Vidyut Vitran Nigam Limited And
3 Others

Counsel for Petitioner :- Udit Chandra, Subodh Kumar

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Deepak Verma, J.

As prayed on behalf of learned counsel for the petitioner, put up
this matter on 25th March, 2021 as fresh.

Order Date :- 15.3.2021

Brijesh

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Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Sadhna Rani (Thakur), J.

Heard learned counsel for the parties and perused the record.

The provisional assessment notice dated 28.01.2021 issued by respondent no.4 (Annexure-1 to the writ petition) is being challenged on the ground that without complying with the provisions of Clause 5.6 and 6.8 of the U.P. Electricity Supply Code, 2005, it was not open for the respondent department to disconnect the electricity on the basis of an inspection report of the inspection done on 28.01.2021. It is then submitted that it was not possible for the authority to issue provisional assessment order on 28.01.2021 i.e. the date of inspection itself, inasmuch as, the defect in the meter had not been determined by following procedure in Clause 5.6 of the U.P. Electricity Supply Code, 2005.

Reliance has been placed on the decision of this Court in the case of Amaravati Devi Vs. Purvanchal Vidyut Vitran Nigam reported in 2009 (1) ADJ 430 to assert the said point. This submission of the learned counsel for the petitioner is found misconceived.

From a perusal of the provisional assessment notice dated 28.01.2021, which categorically records that on inspection, it was found that an external device was installed in PT output circuit and by using the said device the petitioner was making theft of electricity. The PT device which was allegedly installed by the petitioner had been sealed and the entire inspection had been video-recorded.

In view of the said facts indicated in the provisional assessment notice, it cannot be said to be a case of defective meter rather it was of theft of electricity by using an external device which would not fall within the provisions of Clause 5.6 of the U.P. Electricity Supply Code, 2005. In a case of theft of electricity, the provision as contained in Clause 8.1 of the Electricity Supply Code, 2005 have to be adhered to i.e. the procedure

prescribed therein for granting opportunity to the consumer has to be followed.

From the record of the writ petition, it is evident that the provisional assessment notice dated 28.01.2021 had been served on the petitioner on 02.02.2021. He, admittedly, did not file any reply to the same.

It is intimated by the learned counsel for the respondents that a final assessment order dated 19.02.2021 has already been passed.

Considering the above and the provisions of Clause 8.1 (a) and (b) of the U.P. Electricity Supply Code 2005, this Court is of the considered view that one more opportunity may be given to the petitioner to submit his objections in accordance with the provision of Clause 8.1 of the U.P. Electricity Supply Code, 2005.

In view thereof the writ petition is disposed of as follows:-

(1) The petitioner shall submit his objections to the provisional assessment notice dated 28.01.2021 within two weeks from today alongwith the copy of this order. In case, such an objection is filed the respondent no.4 would be under obligation to deal with the same and pass a reasoned and speaking order, in accordance with law on all points of objections raised by the petitioner. The final assessment order dated 19.02.2021 shall be subject to the fresh order to be passed by respondent no.4.

However, in case, the petitioner fails to file his objection within the time given above, it would be open for the respondent no.4 to proceed in accordance with law.

Order Date :- 25.3.2021

Radhika